

Divya Sahani v. State of U.P. & Another

Allahabad High Court · Division Bench · 17 March 2021 · AIRONLINE 2021 ALL 373 · WRIT - C No. 2008 of 2021 · **Writ petition allowed (mandamus to grant connection)**

HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 nowhere prohibits the grant of an electricity connection merely because the property is the subject of a pending civil dispute; Clause 4.4(a)(i) requires only that, where ownership is in litigation, a copy of the court's order be furnished. An electricity connection confers no title (Note-3 of Annexure 4.1). Disconnection or refusal solely on the ground of a pending suit is de hors the law and offends the right to live with dignity under Article 21.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Pendency of a property dispute is not a ground to refuse/disconnect a connection

QUESTION

Can a connection be disconnected or refused merely because the premises are the subject of a pending civil suit?

HOLDING

No. Clause 4.4 does not prohibit a connection because of a pending property dispute; Clause 4.4(a)(i) only requires that a court-order copy be furnished where ownership is in litigation. A connection is not proof of title (Note-3, Annexure 4.1). Disconnection solely for the pendency of a suit is de hors the law and violates Article 21; mandamus issued to grant the connection. ¶ 6-8

LIMITING FACTS

A connection granted on 24.8.2020 was disconnected on 31.8.2020 solely because the property was the subject of a civil suit (objection by a relative); there were no outstanding dues on the premises.

PRINCIPLE TAGS

disconnection-not-for-landlord-tenant-dispute A pending ownership/property dispute is not a ground to refuse or disconnect a connection; a connection confers no title, so the supply question is independent of the title dispute. ¶ 7

right-to-electricity-art21 Supply of electricity to an occupant is fundamental to living with dignity under Article 21; refusal/disconnection on extraneous grounds offends it. ¶ 7